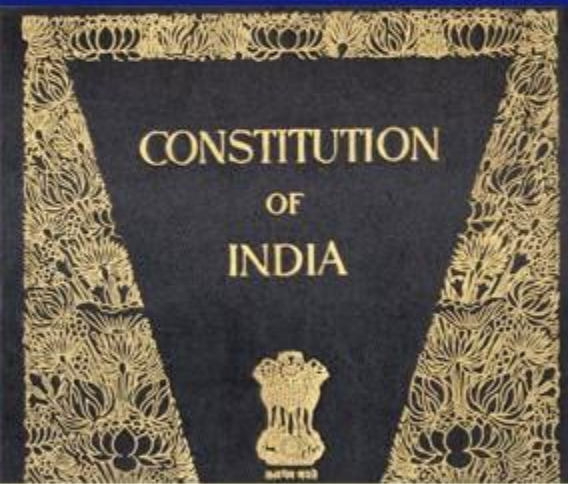


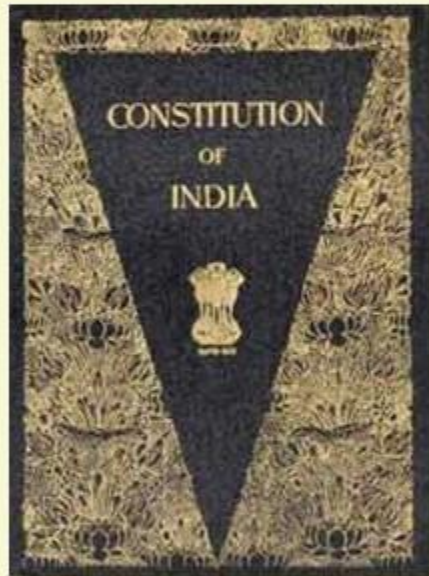
INDIAN POLITY



MODULE - 29

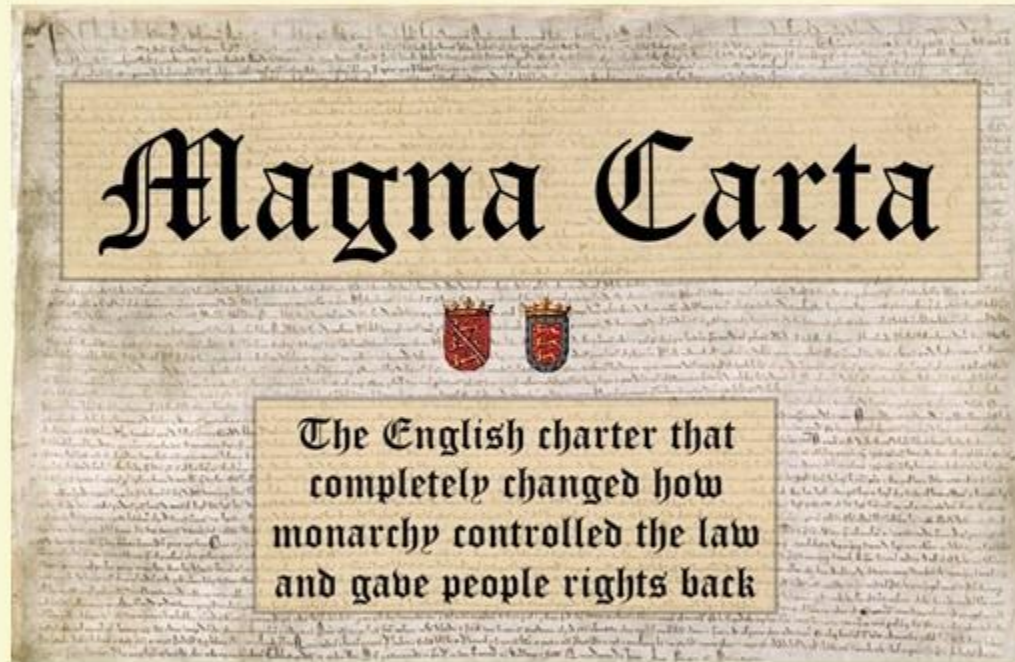
FUNDAMENTAL RIGHTS

■ **FEATURES OF FR**



**FUNDAMENTAL
RIGHTS**

FUNDAMENTAL RIGHTS



- 1 The fundamental rights are enshrined in Part III of the Constitution from Articles 12 to 35.
- 2 In this regard, the framers of the Constitution derived inspiration from the Constitution of USA (i.e., Bill of Rights).
- 3 Part III of the Constitution is rightly described as the Magna Carta of India.
- 4 It contains a very long and comprehensive list of 'justiciable' Fundamental Rights.
- 5 In fact, the Fundamental Rights in our Constitution are more elaborate than those found in the Constitution of any other country in the world, including the USA.

INDIAN POLITY

FUNDAMENTAL RIGHTS



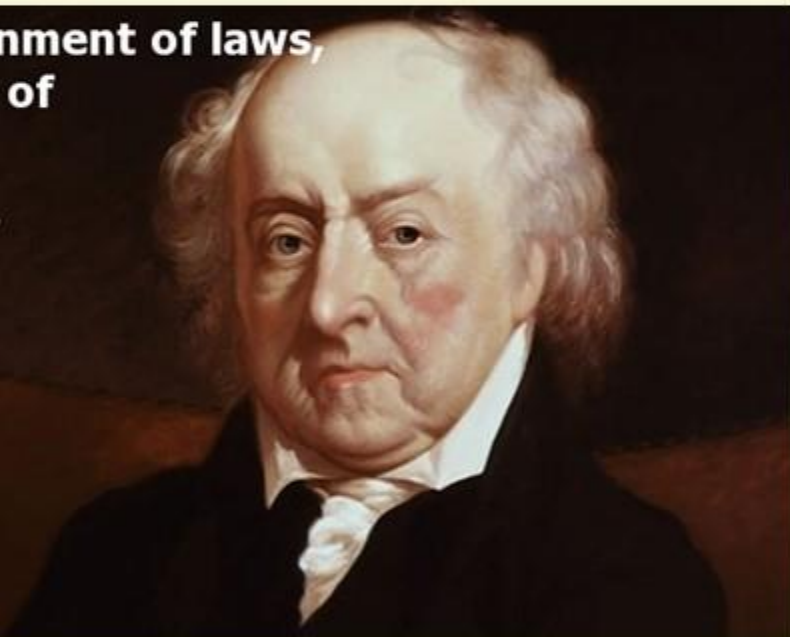
- 6 The Fundamental Rights are guaranteed by the Constitution to **all persons without any discrimination**.
- 7 They uphold the equality of all individuals, the dignity of the individual, the larger public interest and unity of the nation.
- 8 The Fundamental Rights are meant for promoting the **ideal of political democracy**.
- 9 They prevent the establishment of an **authoritarian and despotic rule in the country**, and protect the liberties and freedoms of the people against the invasions by the State.

INDIAN POLITY

FUNDAMENTAL RIGHTS

**A government of laws,
and not of
men**

~ John Adams ~



- 10** They operate as limitations on the tyranny of the executive and arbitrary laws of the legislature.
- 11** In short, they aim at establishing 'a government of laws and not of men'.
- 12** The Fundamental Rights are named so because they are guaranteed and protected by the Constitution, which is the fundamental law of the land.
- 13** They are 'fundamental' also in the sense that they are most essential for the all-round development (material, intellectual, moral and spiritual) of the individuals.

FUNDAMENTAL RIGHTS

RIGHT TO PROPERTY UNDER ARTICLE 31



- 14** Originally, the Constitution provided for seven Fundamental Rights viz,
1. Right to equality (Articles 14-18)
 2. Right to freedom (Articles 19-22)
 3. Rights against exploitation (Articles 23-24)
 4. Right to freedom of religion (Articles 25-28)
 5. Culture and educational rights (Articles 29-30)
 6. Right to property (Article 31)
 7. Right to constitutional remedies (Article 32)
- 15** However, the right to property was deleted from the list of Fundamental Rights by the **44th Amendment Act, 1978**. It is made a legal right under **Article 300-A in Part XII of the Constitution**. So at present, there are only six Fundamental Rights.

MODEL QUESTION 1

Consider the following statements regarding Fundamental Rights and Legal Rights.

- 1) FR are protected & guaranteed by the Constitution and they cannot be taken away by an ordinary law of the legislature.
- 2) Legal Right can be taken back by the state while Fundamental Rights are absolute in nature.
- 3) Both Legal and Fundamental Right can be claimed against either an individual or a state.



Learning Space

Which of the above options are not correct?

- | | |
|---------------|---------------|
| a) 1 & 3 only | b) 2 & 3 only |
| c) 2 only | d) 3 only |

Answer : C

FUNDAMENTAL RIGHT

- Guaranteed by the Constitution.
- Can be changed but only through a constitutional Amendment under Article 368 without affecting “basic structure”.
- Available against State and individual.

LEGAL RIGHT

- Guaranteed by Law
- Can be changed by normal legislative process
- Available both against individual and the State.

- Statement 2 is wrong because FR are qualified in nature. The state can impose reasonable restrictions on them. Some FR can be suspended during the imposition of National Emergency. Hence, by all means, FR is not absolute.

FUNDAMENTAL RIGHTS AT A GLANCE

CATEGORY	CONSISTS OF
1 Right to equality (Article 14-18)	a) Equality before law and equal protection of laws (Article 14) b) Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth (Article 15). c) Equality of opportunity in matters of public employment (Article 16). d) Abolition of untouchability and prohibition of its practice (Article 17). e) Abolition of titles except military and academic (Article 18).
2 Right to freedom (Article 19-22)	a) Protection of six rights regarding freedom of: • Speech and expression • Assembly • Association • Movement • Residence • Profession (Article 19) b) Protection in respect of conviction for offences (Article 20) c) Protection of life and personal liberty (Article 21) d) Right to elementary education (Article 21 A) e) Protection against arrest and detention in certain cases (Article 22)

FUNDAMENTAL RIGHTS AT A GLANCE

3. Right against exploitation (Articles 23-24)	a) Prohibition of traffic in human beings and forced labour (Article 23) b) Prohibition of employment of children in factories etc. (Article 24).
4. Right to Freedom of Religion (Article 25-28)	a) Freedom of conscience and free profession, practice and propagation of religion (Article 25). b) Freedom to manage religious affairs (Article 26) c) Freedom from payment of taxes for promotion of any religion (Article 27). d) Freedom from attending religious instruction or worship in certain educational institutions (Article 28).
5. Cultural and educational rights (Articles 29-30)	a) Protection of language, script and culture of minorities (Article 29). b) Right to minorities to establish and administer educational institutions (Article 30).
6. Right to Constitutional remedies (Article 32)	Right to move the Supreme Court for the enforcement of fundamental rights including the writs of i. Habeas Corpus ii. Mandamus iii. Prohibition iv. Certiorari v. Quo warranto (Article 32)

INDIAN POLITY

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS

The Fundamental Rights guaranteed by the Constitution are characterized by the following:

1 Some of them are available only to the citizens while others are available to all persons whether citizens, foreigners or legal persons like corporations or companies.

2 They are not absolute but qualified. The state can impose reasonable restrictions on them.

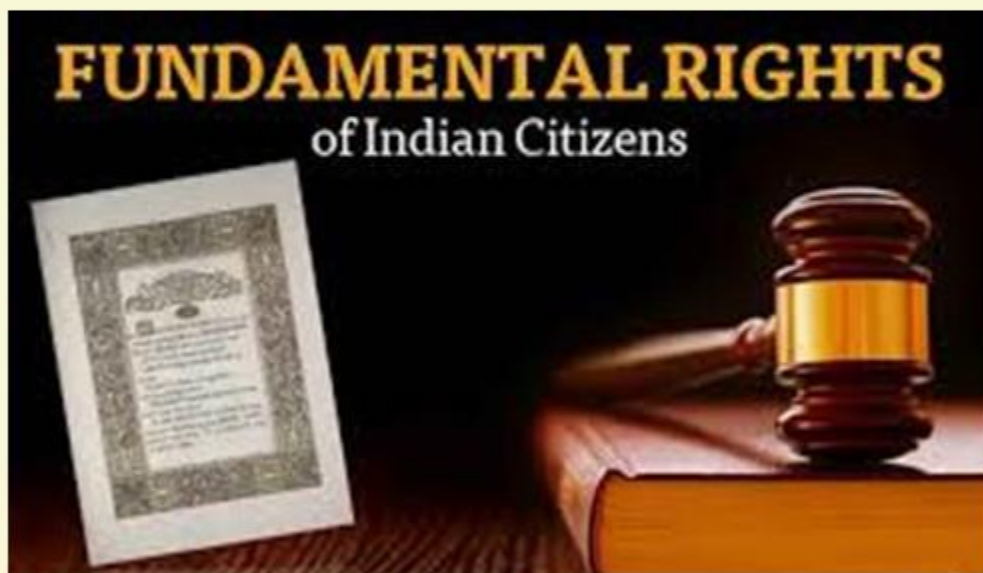
3 However, whether such restrictions are reasonable or not is to be decided by the courts.

4 Thus, they strike a balance between the rights of the individual and those of the society as a whole, between individual liberty and social control.

INDIAN POLITY

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS



5 Most of them are available against the arbitrary action of the State

6 Some of them are negative in character, that is, **place limitations on the authority of the State**, while others are positive in nature, conferring certain privileges on the persons.

7 They are justiciable, allowing persons to move the courts for their enforcement, if and when they are violated.

MODEL QUESTION 2

Which of the following statements closely related to the term “Fundamental Rights”?

1. Equality of all citizens
2. Instrument of Instructions
3. Limited Government
4. Popular Sovereignty



Learning Space

Choose the correct options from the ones given below

- | | |
|---------------|---------------------|
| a) 2 only | b) 3 only |
| c) 1 & 2 only | d) All of the above |

Answer: B

FUNDAMENTAL RIGHTS

1. Right to Equality
2. Right to Freedom
3. Right to Freedom against Exploitation
4. Right to Freedom of Religion
5. Cultural and Educational Rights
6. Right to Constitutional Remedies

- FR simply means the right of people to lead their lives in a humane and dignified **without being overpowered by the three organs of the State**
 - ✓ The Legislative
 - ✓ Executive &
 - ✓ Judiciary
- **Thus they are limitations upon the powers of the state.**
- They are rights guaranteed by the Constitution against the all-powerful State.

INDIAN POLITY

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS



8 They are defended and guaranteed by the Supreme Court. Hence, the aggrieved person can directly go to the Supreme Court, not necessarily by way of appeal against the judgement of the high courts.

9 They are not sacrosanct or permanent. The Parliament can curtail or repeal them but only by a constitutional amendment act and not by an ordinary act. Moreover, this can be done without affecting the 'basic structure' of the Constitution.

INDIAN POLITY

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS



10 They can be suspended during the operation of a National Emergency except the rights guaranteed by Article 20 and 21.

11 Further, the six rights guaranteed by Article 19 can be suspended only when emergency is declared on the grounds of war or external aggression (i.e., external emergency) and not on ground of armed rebellion (i.e., internal emergency)

INDIAN POLITY

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS



- 12** Their **scope of operation** is limited by Article 31A (saving of laws providing acquisition of estates, etc.), Article 31B (validation of certain acts and regulations included in the 9th Schedule) and Article 31C (saving of laws giving effect to certain Directive Principles).
- 13** Their **application to the members of armed forces, para-military forces, police forces, intelligence agencies analogous services** can be restricted or abrogated by the Parliament (Article 33).

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS



14 Their application can be restricted while martial law is in force in any area. Martial law means 'military rule' imposed under abnormal circumstances to restore order (Article 34). It is different from the imposition of national emergency.

15 Most of them are directly enforceable (self-executory) while a few of them can be enforced on the basis of a law made for giving effect to them. Such a law can be made only by the Parliament and not by state legislatures so that uniformity throughout the country is maintained (Article 35).

INDIAN POLITY

FUNDAMENTAL RIGHTS

FEATURES OF FUNDAMENTAL RIGHTS

SELF EXECUTORY vs.. EXECUTORY

There are certain rights in our Constitution which don't need any legislation for its enforcement. These are **self executory rights**. There are certain rights included in Part III which are available not only against the State but also against private individuals. Some of these rights are **not self-executory, that is to say, these articles are not directly enforceable**. They can be enforced only if some law is made to give effect to them and when such a law is violated. For example,

- Art 15(2) equality in regard to access to and use of places of public interest;
- Art 24 Prohibition of employment of children in hazardous employment and so on.

MODEL QUESTION 3

Consider the following statements regarding Article 21A.

- 1) This right covers not only elementary education but also higher education.
- 2) Right to education is a self - executory right.
- 3) Right to Education is also embodied in DPSP & Fundamental duties.



Learning Space

Which of the statements given above are correct?

- | | |
|-----------|---------------|
| a) 2 only | b) 2 & 3 only |
| c) 3 only | d) 1 & 2 only |

Answer: C

- Statement 1 is wrong as Article 21 covers only elementary education to all children between the age group of 6-14.
- Certain fundamental rights **do not need a separate legislation** to make them enforceable. Such FR is said to be **self-executory**.
E.g. Right to Equality
- Others **need a separate legislation** for execution.
E.g. 1) Right to Free & Compulsory Education (Article 21 A)
2) Prohibition of Traffic in Human Beings & Forced Labour (Article 23)
3) Prohibition of Child Labour (Article 24)
- Right to Education in various forms in our Constitution.
 - Article 45 – Directive Principles of State Policy
 - Article 51 A – Fundamental Duties
 - Article 21 A – Fundamental Rights

MODEL QUESTION 4

Consider the following statements.

- 1) The Supreme Court declared the education as a fundamental right in the Waman Rao vs. Union of India case.
- 2) The 86th Constitutional Amendment Act brought in Article 21A by which the scheme of “Right to Education” was enforced all over the country.



Learning Space

Choose the following correct options

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 Nor 2 |

Answer: D

- Education as a fundamental Right – this was a historic ruling in the year 1993 in the **case of J. P. Unnikrishnan Vs. the state of Andhra Pradesh**
- The 86th Amendment Act was introduced to **recognise** elementary education to children of the age group of 6-14 years as **constitutional right**. However, it needed to be supported by a legislation so as to **prescribe the 'manner'** by which the provision can be implemented and brought into effect.
- **RTE Act 2009** provided for the **framework** under which the state had to provide free & compulsory education to the children. It provided for the appointment of trained teachers, laid down the standards of student-teachers ratio, infrastructure.
- To sum up, **RTE Act** was an Act to implement & give effect to Article 21A.

RTE- “Means”; Article 21A- “End”

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9